

HOUSE No. 4286

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 23, 2025.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 3906) of Justin Thurber and Michael J. Rodrigues (by vote of the town) that the town of Somerset be authorized to grant one additional license for the sale of alcoholic beverages to be drunk off the premises, reports recommending that the accompanying bill (House, No. 4286) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

HOUSE No. 4286

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Somerset to grant an additional license for the sale of wine and malt beverages to be drunk off the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Somerset may grant 1 additional license for the sale of wine
3 and malt beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to
4 Olde Village Convenience Store located at 2756 County Street in the town. The license granted
5 pursuant to this act shall be subject to all of said chapter 138 except said section 17.

6 (b) The licensing authority shall not approve the transfer of a license granted pursuant to
7 this act to any other location, but it may grant the license to a new applicant at the same location
8 if the applicant files with the licensing authority a letter from the department of revenue and a
9 letter from the department of unemployment assistance indicating that the license is in good
10 standing with those departments and that all applicable taxes, fees, and contributions have been
11 paid.

12 (c) If a licensee terminates or fails to renew the license granted under this section or any
13 such license is cancelled, revoked or no longer in use, it shall be returned physically, with all of

14 the legal rights, privileges and restrictions pertaining thereto, to the licensing authority which
15 may, within 3 years after such return, then grant the license to a new applicant at the same
16 location and under the same terms and conditions as specified in this section, otherwise such
17 license shall dissolve.

18 (d) The license granted under this act shall be issued within 1 year after the effective date
19 of this act; provided, however, that if the license is originally granted within that time period, it
20 may be granted to a new applicant under subsections (b) and (c) thereafter.

21 SECTION 2. This act shall take effect upon its passage.